

25LBCV00405 25LBCV00405

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BACKGROUND

On February 18, 2025, Plaintiffs Christopher Acuesta and Karen Acuesta ("Plaintiffs") filed this action against Defendants, Lee Post and Elena Post ("Defendants") for malicious prosecution, negligence, and interference with contractual relations. Plaintiffs also seek declaratory relief by way of their complaint.

On February 27, 2025, Plaintiffs filed the operative First-Amended Complaint ("FAC").

On May 7, 2026, Defendants filed the instant demurrer to the FAC.

On June 29, 2026, Plaintiffs filed opposition.

As of July 10, 2026, no reply has been filed.

DISCUSSION

Applicable
Law

Code of Civil Procedure ("CCP") section 430.10 subdivision (e) is grounds for a demurrer when the complaint fails to state

facts sufficient to constitute a cause of action. CCP § 430.10(f) is grounds for a demurrer when the complaint is uncertain (vague and ambiguous). For purposes of ruling on a demurrer, material facts properly pleaded in the complaint must be taken as true. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 491.)

A demurrer may challenge only defects that appear on the face of the pleading or from matters which are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 31; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994; California Practice Guide, Civil Procedure Before Trial, ¶7:8 (The Rutter Group 2024).)

The function of a demurrer is to test the legal sufficiency of a complaint, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.*, supra, 116 Cal.App.4th at 994; *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388; *SJJCA Aviation Services, LLC v. City of San Jose* (2017) 12 Cal.App.5th 1043, 1051-1052; California Practice Guide, Civil Procedure Before Trial, ¶7:5 (The Rutter Group 2024).) Demurrers are to be sustained where a pleading fails to plead adequately any essential element of the cause of action. (*Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 879-80.)

“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed (Code Civ. Proc., §§ 430.30, 430.70). The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; *Accord McKenney v. Purepac Pharmaceutical Co.* (2008) 162 Cal.App.4th 72, 79.) When considering demurrers, courts read the allegations liberally and in context. (*McKenney*, supra, 167 Cal.App.4th at 77; *Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228.)

“If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

Preliminary

Matters

A. Meet and Confer

“Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. If an amended complaint, cross-complaint, or answer is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a demurrer to the amended pleading.” (Code Civ. Proc., § 430.41, subd. (a).)

A trial court cannot overrule or sustain a demurrer on the grounds that the parties failed to meet and confer. (Cal. Civ. Proc. Code § 430.41(a)(4); see also *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355-356 (*Dumas*) [“Nothing in the text of section 430.41, subdivision (a)(4), conditions its operation on compliance with other provisions. To the contrary, it instructs that ‘[a]ny’ determination that the process was insufficient will not be grounds to overrule the demurrer”].)

Here,
Defense Counsel filed an incomplete declaration regarding meet and confer efforts. Plaintiffs argue that Defendants failed to meet and confer and asks the Court to overrule the demurrer on this ground. Defendants are admonished to ensure adequate meet and confer efforts moving forward but this is not grounds to overrule the demurrer. The Court will reach the merits.

Analysis

Defendants demur to the FAC as to Lee Post being named in his capacity as “Trustee” on the grounds that Lee Post is no longer the Trustee of “The Post Family Trust”. Defendants argue that as Lee Post is no longer Trustee, the FAC with respect to Lee Post as Trustee fails to state facts sufficient to constitute a cause of action under Code of Civil Procedure section 430.10(e).

In opposition, Plaintiffs argue that the FAC adequately pleads factual allegations that Lee Post is the trustee of the Post Family Trust, and this is sufficient. Here, the inquiry on demurrer is whether the pleadings are adequate. The Court cannot look outside of the pleadings and matters judicially noticeable to answer this question. On its face, the FAC adequately pleads that Lee Post is the Trustee of the Post Family Trust. While Defendants argue that Lee Post is no longer the trustee, that is an improper question of fact that the Court cannot resolve at the demurrer stage.

CONCLUSION

Defendants' Demurrer to the FAC is OVERRULED.

Moving parties to give notice.

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